

The Cost Accounting Records (Bulk Drugs) Rules, 1974

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The Cost Accounting Records (Bulk Drugs) Rules, 1974

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The Cost Accounting Records (Bulk Drugs) Rules, 1974

Rule THE-COST-ACCOUNTING-RECORDS-BULK-DRUGS-RULES-1974 of 1974

Published on 14 March 1974

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The Cost Accounting Records (Bulk Drugs) Rules, 1974

Published vide G.S.R. 130(E), dated 14.3.1974, published in the Gazette of India, Ext., Pt. II, Section 3(i), dated 14.3.1974.

8.

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In exercise of the powers conferred by sub-section (1) of section 642, read with clause (d) of sub-section (1) of section 209, of the Companies Act, 1956 (1 of 1956), the Central Government hereby makes the following rules, namely:--

1.

Short title and commencement.-(1) These rules may be called The Cost Accounting Records (Bulk Drugs) Rules, 1974.

(2)

They shall come into force on the 1st day of April, 1979.

2.

Application .-They shall apply to every company engaged in the production, processing or manufacturing of bulk drugs.

3.

Definitions .-In these rules, unless the context otherwise requires,-

(a)

the expressions "bulk drug", "essential bulk drug" and "formulation" shall have the meanings respectively assigned to them in the Drugs (Prices Control) Order, 1970, as amended from time to time;

(b)

"intermediate" means any compound which is manufactured from primary or basic raw material and which is used in the production, processing or manufacture of any bulk drug.

4.

Maintenance of records .-(1) Every company to which these rules apply shall, in respect of each of its financial year commencing on or after the commencement of these rules, keep proper books of account containing inter alia the particulars specified in Schedules I and II annexed to these rules relating to the utilisation of materials, labour and other items of cost so far as they are applicable to the bulk drugs:

Provided that if the said company is manufacturing any products or engaged in other activities in addition to any of the bulk drugs, the particulars relating to the utilisation of materials, labour and other items of cost in so far as they are applicable to such other products or activities shall not be included in the cost of such bulk drug.

(2)

The books of account referred to in sub-rule (1) shall be kept in such a way as to make it possible to calculate the cost of production and cost of sale of each of the bulk drugs during a financial year (hereinafter referred to as the relevant period) from the particulars entered therein.

(3)

It shall be the duty of every person referred to in sub-section (6) and sub--section (7) of section 209 of the Companies Act, 1956 (1 of 1956) to take all reasonable steps to secure compliance by the company with the provisions of sub-rules (1) and (2) in the same manner as they are liable to maintain financial accounts required under sub-section (1) of section 209 of the said Act.

5.

Penalty .-If a company contravenes the provisions of Rule 4, the company and every officer thereof who is in default, including the persons referred to in sub-rule (3) of that rule, shall be punishable with fine which may extend to five hundred rupees and, where the contravention is continuing one, with a further fine which may extend to fifty rupees for every day after the first during which contravention continues.

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